



CHAPTER cxxxiii.

An Act to authorise Lever Brothers Limited to construct wharves a railway and other works in the parish of Bromborough in the county of Chester and for other purposes. A.D. 1920.
[9th August 1920.]

WHEREAS Lever Brothers Limited (hereinafter called "the Company") are a company limited by shares and were incorporated under the provisions of the Companies Acts 1862 to 1890 on the twenty-first day of June one thousand eight hundred and ninety-four for the purpose among other things of acquiring and taking over the business and assets of Lever Brothers Limited a company incorporated in the year one thousand eight hundred and ninety and of carrying on the business so to be acquired:

And whereas the Company acquired the business and assets of the said company incorporated in the year one thousand eight hundred and ninety and have developed a large and important business:

And whereas the Company own the whole of the issued shares of the following companies (that is to say):—

Planters Margarine Company Limited and Knowles Oxygen Company Limited (hereinafter called "the subsidiary companies") having together issued capital amounting to two million eighty-five thousand six hundred and twenty-four pounds of which two million eighty-two thousand seven hundred and thirty-six pounds ten shillings is paid-up:

And whereas the Company and the subsidiary companies or some of them manufacture and produce and deal with and

A.D. 1920. in besides soap candles glycerine chemicals oils and fats
— margarine and other articles of food prepared from oils and
fats :

And whereas the Company and the subsidiary companies have large works situate upon the left bank of the River Mersey in the urban district of Bromborough and at Port Sunlight in the urban district of Lower Bebington in the county of Chester from which they carry on an extensive business in the United Kingdom as well as a most important import and export trade with all other parts of the world :

And whereas considerable enlargements and extensions of the said works of the Company and of the subsidiary companies both at Bromborough and Port Sunlight are now in progress :

And whereas the existing facilities for the conveyance by land and by water to and from and the receiving and taking delivery at the said works of the Company and the subsidiary companies of the materials and things required manufactured or dealt with by them at the said works are inadequate and will become increasingly so owing to the changing conditions and methods of transport of oils and fats and other raw materials and to the constant increase in the quantity of such materials and things and also in consequence of such enlargements and extensions as aforesaid :

And whereas the provision of wharves and other facilities by this Act authorised at Bromborough aforesaid for the conveyance to and from and the receiving and taking delivery at the said works of such materials and things as aforesaid would conduce to the efficient conduct of the said business and to the utility of the said works and the production therefrom :

And whereas it is expedient and would be of public and local advantage that the Company should be empowered to make and maintain the works by this Act authorised :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas plans and sections showing the lines and levels of the wharves railway and other works by this Act authorised as originally proposed and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may

be taken for the purposes or under the powers of this Act A.D. 1920.
were duly deposited with the clerk of the peace for the county
of Chester and are hereinafter respectively referred to as the
deposited plans sections and books of reference:

And whereas the purposes of this Act cannot be effected
without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say):—

1. This Act may be cited as *Lever Brothers Limited* Short title.
(*Wharves and Railway*) Act 1920.

2. The following Acts and parts of Acts so far as the same Incorpora-
are applicable for the purposes of and are not inconsistent with tion of Acts.
or varied by the provisions of this Act are hereby incorporated
with and form part of this Act:—

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845;

The Harbours Docks and Piers Clauses Act 1847 except the
following sections thereof (that is to say) Sections 12 13
16 to 19 (unless the Company shall be required by the
Board of Trade to provide and maintain a lifeboat and
tide and weather gauge) 22 25 to 27 29 to 50 66 to 70
and 81 and 82;

And Part I. (relating to construction of a railway) of the
Railways Clauses Act 1863:

Provided that for the purposes of this Act the words
“harbour” “dock” or “pier” wherever used in the Harbours
Docks and Piers Clauses Act 1847 shall be deemed to include
the wharf works as hereinafter defined and the words “harbour-
master” “dock-master” or “pier-master” wherever therein used
shall be deemed to mean the wharf-master as defined by this
Act and the words “the undertakers” wherever therein used
shall be deemed to mean the Company.

3. In this Act the several words and expressions to which Interpret-
meanings are assigned by the Acts wholly or partially incor- tion.
porated herewith have the same respective meanings unless

[Ch. cxxxiii.] *Lever Brothers, Limited* [10 & 11 GEO. 5.]
(*Wharves and Railway*) Act, 1920.

A.D. 1920. there be something in the subject or context repugnant to such construction And—

The expression “the Company” means Lever Brothers Limited;

The expression “the wharf works” or “the wharf” means the wharf or wharves and embankment and works and appliances incidental thereto by this Act authorised;

The expression “the railway” means the railway by this Act authorised;

The expression “the works” means the works by this Act authorised;

The expression “the wharf-master” means with reference to the wharf works the wharf-master appointed by virtue of this Act and with respect to all acts authorised or required to be done by such wharf-master shall include the assistants of every such wharf-master;

The expression “vessel” includes ship barge boat seaplane hydroplane and craft of every class and description however propelled;

The expression “high-water mark” means high-water mark of ordinary spring tides Admiralty datum;

The expression “the tribunal” means the jury arbitrators umpire justices or other authority to whom any question of disputed compensation under this Act is referred;

The expression “the acting conservator” means the acting conservator for the time being of the River Mersey;

The expression “the signed plan and sections” means the plan and sections signed in duplicate by Admiral Sir Mostyn Field the acting conservator and countersigned by Sir Park Goff the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred of which plan and sections one copy has been deposited in the Parliament Office of the House of Lords and the other copy has been deposited in the Private Bill Office of the House of Commons;

The expression “the board” means the Mersey Docks and Harbour Board;

The expression “the canal company” means the Manchester Ship Canal Company.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections as modified by the signed plan and sections the wharf works bridge railway and other works hereinafter described with all proper stations sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for that purpose.

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Power to
execute
works.

The works hereinbefore referred to and authorised by this Act will be situated in the county of Chester and are as follows:—

Work No. 1 A wharf quay or landing-stage and embankment situate partly on the western bank of the River Mersey and partly on the foreshore of the said river wholly in the parish and urban district of Bromborough:

Work No. 2 An island wharf or landing-stage situate on the bed and foreshore of the River Mersey wholly in the parish and urban district of Bromborough:

Work No. 3 A bridge situate wholly in the parish and urban district of Bromborough commencing in the Work No. 2 before described and terminating at a point 124 yards or thereabouts measured in a south-easterly direction from the east end of the fence dividing the inclosures numbered 20 and 21 on the said Ordnance map and 437 yards or thereabouts measured in a north-easterly direction from the north-east corner of the Old Lime Kiln shown within the enclosure numbered 23 on the said Ordnance map:

Work No. 4 A railway (3 furlongs 4·5 chains or thereabouts in length) situate wholly in the parish and urban district of Bromborough commencing by a junction with an existing railway siding of the Company at a point 108 yards or thereabouts measured in a north-easterly direction from the east end of the fence dividing the enclosures numbered 20 and 21 on the Ordnance map of the parish of Bromborough sheet XXIII. 1 and 346 yards or thereabouts measured in a south-easterly direction from the east end of the fence dividing the inclosures numbered 12 and 20 on the said Ordnance map and terminating in the inclosure numbered 42 on the said

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Ordnance map at a point 130 yards or thereabouts measured in an easterly direction from the north-east corner of the Old Lime Kiln shown within the inclosure numbered 23 on the said Ordnance map and 604 yards or thereabouts measured in a south-easterly direction from the east end of the fence dividing the inclosures numbered 20 and 21 on the said Ordnance map.

Subsidiary
works and
powers.

5. Subject to the provisions of this Act the Company may in connexion with the works and for the purposes of this Act exercise all or any of the powers and carry into effect all or any of the objects following (that is to say):—

(1) They may—

(A) for the purpose of carrying out the dredging obligations provided for by the section of this Act of which the marginal note is "For protection of River Mersey" deepen dredge widen and alter from time to time the bed channels shore and banks of the River Mersey adjoining the wharf works and of any rivers streams and creeks adjacent to the wharf works;

(B) between the entrance buoys to the Eastham Channel and an imaginary line drawn due east from Job's Pier deepen and dredge the bed channels and shore of the said river and remove any sand shingle mud soil rocks shoals or other material which may interfere with the access to the wharf works; and

(C) use appropriate and dispose of any materials so dredged or removed or which may be obtained in the construction of the works:

Provided always that they shall not unnecessarily interfere with the dredging operations of the canal company or with the traffic to and from the Manchester Ship Canal:

Provided further that nothing in this subsection shall empower the Company to dredge to the westward of the western line of dredging as shown upon the signed plan except to the extent indicated in the note thereon or to the eastward of the eastern dredging limits of the canal company:

(2) They may reclaim so much of the land foreshore and banks of the River Mersey adjoining the wharf works or of any of the said rivers streams or creeks as may be necessary for the construction of the wharf works : A.D. 1920.

(3) They may construct and maintain from time to time all necessary and convenient sidings junctions turntables stations signals bridges approaches roads gates warehouses sheds buildings yards walls embankments electric lighting telegraphic and telephonic works waterworks wells pumps reservoirs pipes mains conduits wires cables sewers drains culverts stairs gantries coal and other tips machinery cranes hydraulic electric and other lifts hoists drops dolphins moorings beacons and other works buildings machinery and appliances connected with the works :

Provided that the Company shall not in the exercise of the powers of this section cause any permanent obstruction in the areas which the Company are by this Act required to dredge or cause any obstruction in the Eastham Channel and that no materials excavated or dredged under the provisions of this section (other than materials required for the construction of the works) shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade and if such position be within the jurisdiction of the Minister of Transport without his consent to be signified in writing by the acting conservator :

Provided also that in the case of the establishment of any electric plant under this section the Company shall be subject to the provisions of the Electricity (Supply) Act 1919.

6.—(1) Any electric telegraphic or telephonic works constructed under the authority of this Act shall not be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869 and shall not be constructed maintained or used in such manner as to cause or be likely to cause any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of such line. For protection of Postmaster-General.

A.D. 1920. (2) Section 6 of the Telegraph Act 1878 shall apply to the whole of the wharf works as if they were an undertaking mentioned in that section.

Deviation. 7. In the execution of the works or any part thereof the Company may subject to the provisions of this Act deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown thereon and vertically from the levels shown on the deposited sections to any extent not exceeding fifteen feet upwards or downwards. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade and the Minister of Transport.

For protec-
tion of River
Mersey. 8.—(1) Notwithstanding anything in this Act or shown on the deposited plans and sections Works Nos. 1 and 2 shall be constructed in accordance with the lines and levels shown on the signed plan and sections and not otherwise save that nothing in this section shall prevent the Company in the construction of Work No. 1 deviating from the lines thereof shown on the signed plan to the extent of not more than twenty feet in a westerly direction. In the event of the Company making any such deviation the eastern face of the said Work No. 1 shall be constructed on a line parallel to the line of the eastern face as shown on the signed plan and the extremities of the said eastern face shall be aligned in such positions as may be agreed between the Company and the Board and the canal company or failing agreement as may be determined by the acting conservator.

(2) Notwithstanding anything in this Act or shown on the deposited plans and sections Work No. 2 shall not exceed six hundred and fifty feet in length or forty-five feet in width and the said work shall be constructed of open work between eight feet below and twenty-two feet above Old Dock Sill at Liverpool and in such manner that every cross-sectional area of the said open work shall be open to the extent of not less than fifty per centum to permit the flow of water through the open work from end to end.

(3) The Company shall contemporaneously with the construction of the wharf works dredge deepen and widen the area coloured pink on the signed plan to the extent and depths shown on the signed plan and sections and shall for ever after keep the same dredged to the extent and depths aforesaid. In

the event of the Company deviating in the construction of Work No. 1 as allowed by this section they shall dredge deepen and widen an additional area as indicated in the note upon the signed plan and to the depths shown on the signed sections and shall for ever after keep the same dredged as aforesaid. A.D. 1920.

(4) Work No. 2 shall not be used until the areas to be dredged deepened and widened as aforesaid with the exception of the slopes shall have been dredged to a depth of at least twenty feet below Old Dock Sill at Liverpool.

(5) Any temporary structures required to be placed eastwards of Work No. 1 shall be placed or constructed only in such positions and for such periods as may from time to time be approved by the acting conservator and in accordance with plans to be previously submitted to and approved by him so as not to interfere more than is necessary with the tidal flow and scour of the river. After the purpose for which any such temporary structure is required has been accomplished the Company shall forthwith remove such structure and the materials thereof.

9. And whereas in the construction of the wharves railway and works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of the lands houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the lands houses or other buildings or manufactories described in the schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Owners may be required to sell parts only of certain properties.

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Works
below high-
water mark
to be subject
to approval
of Board of
Trade.

10. Subject to the provisions of this Act any of the works on over or under tidal lands below high-water mark shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and by the Minister of Transport under the hand of the acting conservator.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade or the Minister of Transport may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Lights on
works
during con-
struction.

11. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade and the Minister of Transport from time to time require or approve.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent
lights on
works.

12. The Company shall at the outer extremity of the works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Survey of
works by
Board of
Trade.

13. If at any time the Board of Trade the Minister of Transport or the acting conservator acting on his behalf deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over

through or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily. A.D. 1920.

14. If a work constructed by the Company on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade or the Minister of Transport may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily. Abatement of work abandoned or decayed.

15. In case of injury to or destruction or decay of the works below high-water mark or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to such means as aforesaid and the Company shall be liable to a penalty not exceeding twenty pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. Provision against danger to navigation.

16. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Chester for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Chester and a duplicate thereof shall also be deposited with the clerk of the council of the urban district in which the lands affected thereby are situate and such certificate and duplicate respectively shall Correction of errors in deposited plans and books of reference.

A.D. 1920. be kept by such clerk of the peace and clerk of the council respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Power to
stop up
footpath.

17. The Company may stop up so much of the footpath lying along the western bank of the River Mersey as is shown within inclosures numbered 12 20 21 41 and 42 on the $\frac{1}{2500}$ Ordnance map of the parish of Bromborough in the county of Cheshire sheet XXIII. 1 edition 1911 between the property known as "Magazines" and a point twenty yards or thereabouts measured from the south end of the fence dividing inclosures numbered 42 and 42A shown on the said Ordnance map and ninety-four yards or thereabouts measured in a south-easterly direction from the east end of the boundary of the urban district of Bromborough shown on the said Ordnance map And thereupon all rights of way over the said portion of the said footpath shall be extinguished and the Company may appropriate and use for the purposes of their undertaking the site of the portion of footpath so stopped up:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Protection
of gas and
water mains
of local
authorities.

18. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Cables pipes
or wires
under or
across tidal
water.

19. Notwithstanding anything contained in this Act any cables pipes or wires to be laid or placed by the Company under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade

and the Minister of Transport may require and if any such cable pipe or wire become in the opinion of the acting conservator an obstruction to navigation or otherwise prejudicial to the river the Company shall on being so required by the Board of Trade or Minister of Transport remove the same or replace it in such position as the said board or minister may prescribe. A.D. 1920.

20. If the works are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

21. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings. Power to Company to enter upon property for survey and valuation.

22. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object. Costs of arbitration in certain cases.

A.D. 1920. to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this enactment.

Compensation in case of recently altered building.

23. In settling any question of disputed purchase money or compensation under this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the fifteenth day of November one thousand nine hundred and nineteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Single arbitrator.

24. In all cases of disputed compensation arising under this Act in respect of land to be taken compulsorily or otherwise or of injurious affection of land which fall to be determined under the provisions of the Lands Clauses Acts it shall unless the Company and the other party or parties to the dispute concur in the appointment of a single arbitrator pursuant to the said Acts be in the power of the Company or such other party or parties to apply to the Board of Trade to appoint a single arbitrator to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbitrators umpires justices or jury acting under the Lands Clauses Acts. The said arbitrator upon appointment shall be deemed to be a single arbitrator within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly.

Penalty for obstructing works.

25. Every person who wilfully obstructs any person acting under the authority of the Company in setting out the line of the railway or wharf works or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the line of such works shall for every such offence be liable to a penalty not exceeding five pounds.

26. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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 Persons under disability may grant easements &c.

27. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

28. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

29. The prescribed limits for the purposes of the Harbours Docks and Piers Clauses Act 1847 (hereinafter referred to as "the prescribed limits") shall be the wharf works and the water area within fifty yards of any part of the wharf works The jurisdiction of the Company conferred by this Act shall only be exercised with reference to vessels going to moored at or departing from the wharf works and vessels which shall obstruct the approaches to the wharf works and shall not be exercised beyond the prescribed limits Provided that nothing in this section contained shall affect the rights powers authorities and jurisdiction of the Minister of Transport within the said limits.

Limits of wharf-master's authority.

30. Notwithstanding anything contained in this Act or in any Act incorporated therewith the works shall be private works and under no circumstances shall the wharf works be used as a public wharf and the Company shall not for any purposes be deemed to be a railway company.

Works to be private works.

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Power to
Company
to make
byelaws as
to wharf
works &c.

31. In addition to the byelaws which may be made under the provisions with respect to the byelaws to be made by the undertakers of the Harbours Docks and Piers Clauses Act 1847 incorporated with this Act the Company may from time to time make alter and repeal such byelaws as they think fit with reference to all or any of the following purposes (that is to say) :—

The management control and regulation of the wharf works and of goods wares merchandise carts carriages and other vehicles using or passing over or frequenting or resorting to the wharf works or any of the works conveniences or lands of the Company connected with their wharf works ;

Generally any other matters relating to the wharf works and the lands and buildings connected therewith ;

which byelaws may be enforced in the same manner as byelaws made by the Company under the Harbours Docks and Piers Clauses Act 1847 and the penalties for any breach or contravention thereof may be enforced by the wharf-master and may be recovered in any court of competent jurisdiction :

Provided that no byelaws made by the Company shall have any force or effect until they shall have been approved by the Minister of Transport which approval shall be sufficient for all purposes.

Life-saving
apparatus
may be
attached
to wharf
works.

32. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the wharf works spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the said works.

For pro-
tection of
Mersey
Docks and
Harbour
Board and
Manchester
Ship Canal
Company.

33. For the protection of the board and the canal company the following provisions shall unless otherwise agreed between the board and the canal company and the Company have effect (that is to say) :—

(1) The board and the canal company and any person duly authorised by either of them may at all reasonable times enter upon any part of the wharf works and of the foreshore of the River Mersey for the purpose of surveying the River Mersey :

(2) If any work shall be executed or maintained by the Company contrary to the provisions of this Act or if the Company fail to dredge deepen widen and maintain the areas to be dredged by them in accordance with the section of this Act whereof the marginal note is "For protection of River Mersey" the said provisions (and that without prejudice to any other right or remedy of the board the canal company or any other person) may at the instance of the board or the canal company be enforced by writ of mandamus or such other proceeding as may in the circumstances be appropriate: A.D. 1920.

(3) Neither the Company nor the wharf-master shall—

(A) Under the powers of sections 56 57 and 65 of the Harbours Docks and Piers Clauses Act 1847 incorporated with this Act remove or direct the removal of any vessel wreck obstruction or floating timber; or

(B) Under the powers of section 52 of that Act remove or direct the removal of any unserviceable vessel or other obstruction;

to any place outside the prescribed limits within the jurisdiction of either the board or the canal company except to such position and on such terms and conditions as the board or the canal company (as the case may be) approve:

(4) Before applying for the confirmation of any byelaws to be made under the provisions of this Act or any Act incorporated therewith the company shall give not less than one month's previous notice in writing to the board and the canal company:

(5) Nothing in this Act shall take away alter or prejudicially affect any power jurisdiction or authority of the board or the canal company but nothing in this subsection shall authorise any interference with the reasonable and proper user of the wharf works.

34. The powers conferred upon the canal company by section 198 of the Manchester Ship Canal Act 1885 as extended by section 20 of the Manchester Ship Canal (Tidal Openings &c.) Act 1890 shall be deemed to include a power to the canal

As to bye-laws of canal company.

A.D. 1920. company to make from time to time byelaws for the use of the Eastham Channel and the entrance to the Manchester Ship Canal and any such byelaws may provide that the approach of traffic to and the departure of traffic from the said canal shall so far as reasonably practicable not be interfered with by vessels coming to being at or departing from the wharf works :

Provided that no such byelaws shall have any force or effect unless and until the same shall be confirmed by the Board of Trade after a hearing at which the Company shall be entitled to be heard and to object to any such byelaw The canal company shall give to the Company at least one month's previous notice in writing of their intention to make any such byelaw.

For protection of Eastham Ferry.

35. For the protection and benefit of Mary Straker and the Honourable William Westenra or other the owners for the time being of the ancient ferry known as the Eastham Ferry (in this section referred to as "the owners") the following provisions shall apply and have effect :—

The wharf works by this Act authorised shall not except with the consent of the owners be used for the purposes of a ferry for the use of the public in competition with the Eastham Ferry.

Crown rights.

36. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said commissioners and board are hereby respectively authorised to give).

Crown minerals.

37. Notwithstanding the provisions contained in the section of this Act of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Company

authorised to be taken or constructed by this Act but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation Act 1845 relating to notice and compensation shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one half the depth of such workings below the surface level of such lands. A.D. 1920.

38. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty Every penalty under this section shall be recoverable summarily. Copy of Act to be registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

39. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

[Ch. cxxxiii.] *Lever Brothers, Limited* [10 & 11 GEO. 5.]
(*Wharves and Railway*) Act, 1920.

A.D. 1920. The SCHEDULE referred to in the foregoing Act.

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